

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Jennifer Giuliani
Judge of the Superior Court
County of Kings
1640 Kings County Drive
Hanford, CA 93230

Re: Garcia, Miguel Angel
CDC No.: AT1522
Case No.: 13CM8853B
Date of Sentence: 02/28/2014

Dear Honorable Jennifer Giuliani:

The purpose of this letter is to provide the court with authority to resentence Miguel Angel Garcia pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Garcia was sentenced in 2014, and was convicted of section 245, subdivision (a)(1), ASSAULT W/DEADLY WEAPON, to wit A BAT. The trial court sentenced inmate Garcia on 02/28/2014. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Garcia's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Garcia's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Donna L. Tarter, Kings County Presiding Judge
Kings District Attorney
Public Defender

AT 1522

**FELONY ABSTRACT OF JUDGMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: **KINGS**

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: **MIGUEL ANGEL GARCIA**

DOB: **03-30-96**

CASE NUMBER
13CM8853B

AKA:
CII NO.: **A33503007**
BOOKING NO.: **13-00328030** ☐ NOT PRESENT

FELONY ABSTRACT OF JUDGMENT
☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT

☐ AMENDED
ABSTRACT

DATE OF HEARING
02-28-14

DEPT. NO.
1

JUDGE
JENNIFER GIULIANI

CLERK
SYLVIA RONQUILLO

REPORTER
DAWN BICKNER

PROBATION NO. OR PROBATION OFFICER
SWEENEY ☐ IMMEDIATE SENTENCING

COUNSEL FOR PEOPLE
STEVEN NGUYEN, D.D.A.

COUNSEL FOR DEFENDANT
JAMES OLIVER ☒ APPOINTED

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM	SERIOUS FELONY	VIOLENT FELONY	TIME IMPOSED
2	PC	245(a)(1)	ASSAULT W/DEADLY WEAPON, to wit, A BAT	2013	01-09-14	JURY COURT PLEA	U	X		4 YRS. 0 MO.

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL
2	PC186.22(b)(1)(b)	5Y	PC12022.7(a)	3Y			8 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL

4. Defendant sentenced: ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☒ to prison per PC 1170(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC290 or ☐ PC 186.11 enhancement
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant was ordered to report to local parole or probation office upon release.
5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):
Restitution Fine(s): \$ 3,360.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment) \$ 3,360.00 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☒ \$RESERVED ☐ Amount to be determined to ☒ * victim(s) ☐ Restitution Fund

*Victim name(s), if known, and amount breakdown in item 8, below. *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Operations Assess \$ 40 per PC 1465.8. ☒ Conviction Assess \$ 30 per GC 70373. ☐ Other \$ _____ per (specify): _____

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify): _____

7. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Def't's Race/National Origin **HISPANIC**

8. Other orders (specify): ***BILL MORAN. COURT ORDERS DEFENDANT BE TRANSFERRED TO KINGS COUNTY JAIL UPON REACHING THE AGE OF 18 YRS FOR TRANSPORT TO THE CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION.**

9. TOTAL TIME IMPOSED: **12** 0

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows: Suspended portion: _____ Served forthwith: _____

11. ☐ This sentence is to run concurrent with (specify): _____ 12. REGISTRATION REQUIRED: ☒ per (specify code section): **186.30PC**

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION
02-28-14	228	199	29	DMH CDCR CRC
			☐ 2933 ☒ 2933.1 ☐ 4019	[] [X] []

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays. To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.

☐ county jail ☒ Other (specify): **WASC STATE PRISON**

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

KATRINA MORSHEAD

03-06-14

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 1